SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT ALTER THE ACTUAL DISTRICT RECORD

Counterfactual Mandate-Stay Response: Grant Path

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed July 28, 2026

Blue Ember responds to Granite Heron's July 27 motion and supports a limited, secured stay of mandate. Blue Ember's litigation committee has authorized counsel to prepare a petition for a writ of certiorari challenging the counterfactual holding that the full $1,500,000 mitigation deduction was compelled as a matter of law. This representation is present and definite, not a prediction offered by the prevailing party.

The July 9 judgment affirmed mitigation JMOL and affirmed the $2,700,000 amended district judgment. Blue Ember remains the judgment holder only under the branch's assumed express-preservation record, and it intends to seek review of the sufficiency ruling that reduced the verdict. It has not sought rehearing and does not ask the panel to reopen the merits through this response.

Blue Ember agrees that a brief stay can avoid needless enforcement and possible restitution steps while its petition is prepared, provided Granite Heron secures the entire affirmed amount and accrued interest. The company does not consent to an open-ended delay or waive any right to enforce if the security condition fails.

The ordinary mandate date remains July 30. Blue Ember asks the Court to rule before then and to define termination events expressly.

Why the petition presents a substantial question

The proposed petition concerns the boundary between preservation of an affirmative defense and sufficiency of proof supporting a directed monetary deduction. The branch premise removes the actual preservation defect: each assumed Rule 50(a) motion identified mitigation, Cobalt Finch, the requested $1,500,000 reduction, and the evidence said to compel it. The question remaining is whether that proof allowed only one rational result.

Blue Ember will contend that qualification, timing, implementation, and successful substitute performance remained disputed. A jury could credit the opportunity while declining to assign Granite Heron's entire economic model. Treating preservation as if it also resolved those evidentiary conflicts displaced the verdict winner's favorable inferences and converted a contested commercial prospect into a mandatory dollar figure.

Granite Heron has substantial answers, including the held suite, relevant technical capability, staged performance schedule, and absence of a known fatal impediment. Those arguments explain the panel's result but do not erase the federal question. The issue determined $1,500,000 of a final judgment and is cleanly separated from liability and causation.

Blue Ember's intended petition will not claim that the assumed motions were too vague, nor will it rely on the actual causation-only language. It will challenge only the branch merits ruling reached after express preservation was supplied.

Conditions that establish good cause

Blue Ember supports the stay because immediate mandate could trigger district collection proceedings during the short certiorari-preparation period. The parties could incur costs securing, enforcing, and potentially unwinding the judgment even though Granite Heron is willing to protect payment now. Coordinating that activity is sensible when a concrete petition is authorized and the disputed holding directly fixes the judgment amount.

Support is conditioned on a bond or equivalent undertaking covering $2,700,000 plus projected postjudgment interest. The district court should approve the form, issuer, and amount. Granite Heron should file proof promptly, maintain the undertaking without lapse, and bear all associated expense. The order should make timely approval a condition of continued relief and direct prompt dissolution if that condition fails.

Blue Ember reserves the right to request dissolution if the security is rejected, reduced without consent, expires, or becomes unreliable. That safeguard makes the delay materially different from an unsecured postponement based solely on the availability of Supreme Court review.

Good cause also depends on honest status reporting. Blue Ember will notify the clerk immediately if its governing body withdraws authorization or counsel concludes no petition will be filed. The stay should end by court order upon that notice; neither party should be allowed to exploit unused portions of the ninety-day ceiling.

Duration and procedural safeguards

No rehearing petition was filed during the fourteen days following the July 9 judgment, so that interval ended July 23. The seven additional days under Rule 41 place ordinary mandate on July 30. The pending motion and this July 28 response ask only that the panel withhold mandate before its scheduled issuance; they do not seek recall or recalculation.

Blue Ember accepts a stay lasting no more than ninety days from entry unless its certiorari petition is filed or the time to petition is extended for good cause. Upon filing, the parties should tender a copy promptly and advise the Court of the Supreme Court’s ultimate action. If no petition is filed, the parties should report that fact before the period ends.

The order should identify abandonment, security failure, the applicable time limit, Supreme Court disposition, and further panel order as independent grounds for dissolution. It should direct the clerk to release mandate promptly once the panel confirms that no basis for withholding remains. A dated dissolution order will preserve an unambiguous procedural record.

These controls do not prejudge certiorari or add a merits component to the appellate judgment. They simply preserve the branch posture for a defined interval while protecting the full value of the affirmed award.

Conclusion, service, and confined lineage

Blue Ember asks the Court to grant Granite Heron's motion subject to the stated security and reporting conditions. Its authorized petition plan supplies a genuine vehicle for the substantial mitigation-sufficiency question. A short stay supported by full security supplies good cause, while prompt dissolution upon abandonment prevents unnecessary delay.

Nothing in this response changes the counterfactual disposition. Mitigation JMOL and the December 15 amended judgment remain affirmed; the conditional Rule 59 ruling remains dormant; no remand is ordered; and liability and causation are not before the Court. Blue Ember's support is procedural and does not concede that the sufficiency holding is correct.

Maya Holt signs for Blue Ember Biologics, LLC, with Jonas Bell's authorization. Counsel certifies electronic service on Eli Mercer and Tara Webb on July 28, 2026. Blue Ember will provide immediate notice if its certiorari authorization is withdrawn and accepts that a court order may then dissolve the stay.

This response belongs only with the separately marked grant-path motion. It does not respond to, adopt, or cure the denial-path request, where Blue Ember's petition premise is expressly different. No statement here occurred on the actual docket, changes the actual causation-only posttrial motions, or affects the actual appellate decision and damages-retrial remand.